

Andhra Pradesh (Telangana Area) Land Revenue Rules of 1951

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State of Andhra Pradesh - Act

Andhra Pradesh (Telangana Area) Land Revenue Rules of 1951

ANDHRA PRADESH

India

Andhra Pradesh (Telangana Area) Land Revenue Rules of 1951

Rule ANDHRA-PRADESH-TELANGANA-AREA-LAND-REVENUE-RULES-OF-1951 of 1951

Published on 18 January 1951

Commenced on 18 January 1951

[This is the version of this document from 18 January 1951.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh (Telangana Area) Land Revenue Rules of 1951

Last Updated 6th June, 2019

In exercise of the powers conferred by Section 172 of the [Andhra Pradesh (Telangana Area) Land Revenue Act, 1317 F. [Act No.VIII of 1317F.) the Governor is pleased to make the following rules :

1.

Short title, extent and commencement.

(1)

These rules may be called the Andhra Pradesh (Telangana Area) Land Revenue Rules of 1951.

(2)

They shall come into force in the whole of the (Telangana Area) of the A.P. State from the date of their publication in the Gazette, (Published in Hyderabad Gazette No.3, dated 18th January, 1951).

(3)

Definitions : - In these rules -

(i)

Act means the Andhra Pradesh [(Telangana Area) Land Revenue Act of 1317 F.];

(ii)

Form means the form appended to these rules.

(4)

Repeal : - The Andhra Pradesh (Telangana Area) Settlement Rules, of 1318 F and all Gashtis and Orders issued before the commencement of these rules, in so far as they are a repetition of, or inconsistent with the provisions of these rules are hereby repealed; but nothing herein contained shall affect anything done under the said Settlement Rules, Gashtis and Orders before the commencement of these rules.

Part 1 ? General

A - Occupant Right to Improvements

B - Transfer of Registry of Holdings

C - Relinquishment of land

D - Alluvion and Diluvion

E - Cultivation of Pot Kharab

G - Rights of Inamdars and Qualdars to Irrigation from Government sources

H - Wells situated outside the Ayacut of Government Patasthal sources

I - New wells constructed within the Ayacut of Government Patasthal sources

J - Levy of Local Cess

K - Kists of Land Revenue

2.

Occupant shall be entitled to full benefit of improvements.

- Subject to the provisions of these rules, every occupant of land shall be entitled to the full benefits of all improvements made by him in the land at his own expense by way of construction of or repairs to farm buildings and wells or planting of trees or otherwise, and no additional assessment shall be levied in respect of such improvements:

Provided, however, that no occupant shall construct any tank or kunta without obtaining the previous permission of Government. The Government may grant such permission subject to such conditions as it may deem fit according to the circumstances of each case. The Collector may order the demolition of any tank or kunta constructed without such permission, without prejudice to any other action that may be taken against the occupant under the law for time being in force. The village officers shall be responsible to see that provisions of this rule are not contravened and shall in case of failure, render themselves liable to dismissal.

3.

Areas to which these rules shall be applicable.

- The provisions of these rules relating to transfer of registry of holdings shall apply to those areas where the record of rights has not been introduced under the Record of Right in land Regulation 1358F., and shall continue to apply till the said Regulation is made applicable. In areas where the record of rights has been introduced under the said Regulation, transfer of registry of holding shall be governed by provisions of that Regulation and of the rules made thereunder.

4.

Conditions on which the register holder may alienate.

(1)

Save as otherwise provided in the Act or in any other law for the time being in force, a registered holder of land may alienate, sub let, mortgage, sell, give, bequeathe or otherwise dispose of the whole or any portion of his holding.

5.

General rules for transfer of registry of holding.

(1)

An accurate upto date register of holdings shall be maintained in every village showing, as far as possible, the names of persons who are the real owners of land or who by virtue of their title, whatever; its nature are in enjoyment of land. The procedure laid down in the following rules, shall be adopted for effecting changes of registry in the revenue accounts when any transfer of land takes place.

(2)

Alteration in the Registers in respect of all transfers of property, either by way voluntary action of the owners or by virtue of decree of court, revenue sale, or succession shall be made in conformity with the procedure laid down hereunder.

6.

Voluntary transfers of title.

(1)

In all cases of absolute transfers of title, the registry of a holding shall be so altered as to correspond with the transfer of its ownership on the application of either or both the parties to the transfer, provided the application for change of registry shall subject to the provisions of Rule 11 be made in writing and signed by the party or parties making it. The application may be presented in person or by duly authorised agent or be sent by registered post. The application may be attested by the Patwari and Patel of the village in which the land is situated, such attestation being taken as evidence of the identity of the party or parties.

(2)

Where an application under sub rule (1) is presented by both the parties one of whom is the registered holder the change of registry may be ordered at once. But where the application is made only by one of the parties to the transfer a notice of the same shall be taken out to the other party, who may be served either in person through a peon or the village staff or by registered post. If the correct address of the party is not known, the registered letter may be directed to his last known place of residence. In case personal service is not possible, service should be effected in the manner prescribed in the Act.

(3)

Where the registered holder is not a party to the transaction, a notice shall also be given to him whether the application for transfer of registry is presented by either or both the parties. Where only one party to the transaction makes the application, the parties should be connected by a complete chain of documents whether the other party raise any objection or not. In case the chain is not complete, it may be completed through other evidence, such as statements of respectable ryots, kist receipts, etc. One month time shall be allowed for filing objections if any and an enquiry be held in respect of the same. Thereupon transfer of registry shall be ordered unless the objection is found to be valid. The transfer of registry thus ordered shall be entered in the Records of the Jamabandi taking place immediately after the passing of the said order.

7.

Compulsory transfers of title.

(a)

In cases of transfer of title of holding in the name of decree holder pursuant to a decree of a Civil Court or of purchaser in auction sale held in execution of decree of a Civil Court, change of registry may be ordered at once on the application of any of the parties to the suit or of the auction purchaser and on the production of a certified copy of the decree or a certificate of sale as the case may be and a certificate of delivery of possession in pursuance thereof provided the transfer is from a registered holder. When the transfer is from a person who is not a registered holder, a notice shall be given to the registered holder in the manner provided in Rule 6 before change of registry is ordered. In cases where any certificate of delivery of possession cannot be produced; as for instance, where in the decree itself possession is conferred without execution proceedings and the decree is apparently final, the case should be dealt with as provided in Rule 6 in regard to application for change of registry presented only by one of the parties to the transfer.

(b)

In cases where transfer of registry is sought under a declaratory decree on which no execution can be taken out i.e., where the decree merely declares the title to be vested in a particular person, so as to entitle him in registration, the Collector or other authorised officer may on production of a certified copy of such decree, at once order the transfer of registry. The transfer of registry thus ordered shall be entered in the records of the Jamabandi taking place immediately after the passing of the said order.

8.

Cases where no application for transfer is made.

(a)

The Patwari shall prepare every month a statement in Form A showing therein all cases of transfer in which neither party has applied the revenue officers for transfer of registry. Each case shall be entered in a separate form in duplicate. The

Patwari shall, if possible obtain the signatures of the transferers and the transferee and also of the registered holder where he is not a party to the transaction. The statement shall be sent to the Tahsildar or Naib Tahsildar within whose jurisdiction the village is situated. On receipt of the statements, the Tahsildar or Naib Tahsildar shall dispose of cases forthwith where the signatures, of all the parties have been taken and there is no dispute or doubt. Other cases shall be dealt with in accordance with the provisions of Rule 6 or 7, as the case may be. One copy of the statement together with the orders thereon shall be sent back to the Patwari and the other shall be retained in the Tahsildar or Naib Tahsildar office.

(b)

The Girdawar shall inspect every village in his circle once at least in each half year and submit his report about every case of transfer of land in the village to the Tahsildar and Naib Tahsildar as provided in Rule 11. The Tahsildar and Naib Tahsildar shall check Girdawar work at least in one or two villages in each circle annually.

9.

Transfers of title by succession.

- All cases of change of registry necessitated by the death or the prolonged absence for more than seven years, of the registered holder shall be disposed of under this class of transfers.

10.

Transfer in favour of person proving possession for twelve years.

- Where in a summary enquiry parties who have no documents of title, are shown to have been in possession of holding as reputed owners of land for twelve years or more, transfer of registry shall be made after notice, as provided in Rule 6. Action under this rules shall be taken by the revenue officers either on their own motion or on the application of the parties concerned. Payment of revenue as evidenced by the production of kist receipts or by the testimony of the village officers may be taken as proof of possession. In the absence of such proof, oral evidence of possession may also be accepted.

11.

To whom application should be made.

(1)

Applications for transfer registry under the provisions of Rule 6 or Rule 7 shall be made to the Collector or Deputy Collector and all other applications for transfer of registry shall be made to a Revenue Officer not lower in rank than a Girdawar in whose jurisdiction the land, the registry of which is sought to be changed, is situate or to registration officer when any deed of conveyance is presented for registration. The Patwari of the village shall immediately report the death of a registered holder to the Tahsildar or Naib Tahsildar within whose jurisdiction the village is situated, giving the names of heirs of the deceased so far as may be ascertained. The Collector, Deputy Collector, Tahsildar or Naib Tahsildar, as the case may be, shall dispose of finally all applications for transfer filed before him and shall direct change of registry either of his own motion after enquiry and report of an officer not lower in the rank than a Girdawar.

(2)

No appeal shall lie in cases of transfers registry ordered by a Tahsildar or a Naib Tahsildar. The Deputy Collector and the Collector may, in the exercise of the their general powers of revision, entertain revision petitions at any time against the orders of their subordinates in such cases and shall entertain such application when there is a likelihood of Government being involved in a civil suit. The Girdawar after making personal enquiry in the village where the land is situated may dispose of such of the applications for transfer of registry as are presented to him and also such of the outstanding case of transfer of registry ascertained by him during his inspection as provided in Rule 8 (b) which do not involve any dispute or formation of new sub divisions. Disputed cases and cases involving sub divisions shall be submitted to the Tahsildar or Naib Tahsildar, as the case may be, for orders.

12.

Action to be taken by registering officers.

- In every cases of absolute transfer of landed property by a deed of conveyance, or of transfer of possession by any other kind of instrument, registered in any registration office, the registering officer shall obtain from the party presenting the instrument an application in Form 1 for the transfer of revenue registry of the land conveyed or transferred by the document. If both transferer and transferee appear before the registering officer, he shall obtain the signatures of both of them on the application. The registering Officer may also receive an application in writing for such transfer from the party to such a document who does not appear before him. If neither the transferor nor the transferee is willing to make such

an application, the registering officer, himself shall prepare a notice of the transfer in Form A filling in such of the columns therein of which information is available with him. The Registering Officers shall transmit all applications presented to them which shall be in Form II as well as notices prepared by them to the Tahsildar or Naib Tahsildar of the Circle in which the property is situated, who shall take action on them as if they had been received by revenue officers direct.

13.

Withdrawal of applications for transfer.

- In the case of applications for change of registry made before registration officers as well as those made before revenue officers, no transfer of registry shall be effected if before such transfer is made, the registered holder gives notice intimating about the withdrawal of his application. But where there is a duly executed and registered document evidencing the transfer, the procedure prescribed in the later portion of Rule 6 should be followed as if an application were made only by the transferee.

14.

Stamp duty.

- Applications for transfer of registry in the revenue account shall be exempt from stamp duty.

15.

Change of names in joint pattas.

(a)

On account of death :- In the case of change of names in joint pattas on account of death the procedure shall be the same as that specified in Rule 9 for cases of deceased in single pattas.

(b)

Joint registry of the name of a transferee :- Where a joint holder of a holding has transferred his interest in a joint holding, the name of the transferee may be registered jointly with the other co sharer name being removed, unless his interest has been transferred only in part. The consent of the other co sharers shall not be necessary, but due notice shall be given to all joint holders of a holding in the manner provided in Rule 6 and their objections shall be carefully considered before the transfer is registered.

(c)

Sub division and separate registry of joint holdings :- Sub divisions and separate registry of a joint of holding may be effected at the instance of any one of the joint holders of a holding or of the persons to whom the whole or part of his share has been transferred provided that the shares are marked on the ground by well defined boundaries. The consent of the joint holders shall not be necessary but notices shall be issued to all persons interested in the manner provided in Rule 6 and their objections shall be duly considered.

16.

Relinquishment of land.

- A registered holder may relinquish his land by submitting an unconditional razinama in writing to the Tahsildar or Naib Tahsildar before the end of April in any year. Such razinama need not be stamped but shall be in Form C and the declaration therein shall be attested by two respectable witnesses. The Patwari shall, if requested to do so by the registered holder, write the razinama himself without charging any fees for the same. If the razinama is prepared by the Patwari, he shall affix his signature beneath the words written on the lower left hand corner of such razinama. The Tahsildar or Naib Tahsildar, as the case may be, who receives such razinama shall certify it in his own hand according to the certificate prescribed in Form C . He shall exercise due care in ascertaining the identity of the person who has signed the same, notwithstanding that such notice has been duly endorsed as hereinbefore required. The relinquishment shall have effect from the close of the current year.

17.

Procedure when razinama is sanctioned.

- After the razinama has been certified, the certifying officer shall give a written intimation to the applicant that his razinama has been sanctioned and shall also inform the village officers of the same. The village officers shall make an entry regarding the relinquishment in the village register.

18.

Certification of razinama.

- A registered holder may get his razinama certified by appearing before any revenue officer not lower in rank than a

Naib Tahsildar.

19.

Certification of razinama on commission.

- Where a registered holder cannot appear in person and present his razinama for certification on account of the old age, sickness, or other infirmity or because the registered holder is a purdha nashin woman or for any other reasonable ground the razinama may be certified on commission.

20.

Certification of razinama by Jail Superintendent.

- If a registered holder is in prison the certificate of the Jail Superintendent shall be deemed to be sufficient for the purposes of sanctioning the relinquishment.

21.

Razinama by minor.

- In the case of razinama by a minor registered holder, the attestation of his guardian shall be deemed sufficient.

22.

Razinama to be refused for arrears.

- A razinama shall not be accepted if there are any arrears due on the land which is proposed to be relinquished.

23.

Procedure when razinama is withdrawn.

- A registered holder whose razinama has been certified may withdraw the same at any time before the order for excluding his name from the land records has been passed in Jamabandi, by submitting an application in writing to the Tahsildar withdrawing his razinama. On receipt of such application, the Tahsildar shall not take any further action on the razinama and shall pass orders that the patta of the land shall continue in the name of the applicant.

24.

List of lands relinquished.

- The Village Officers shall affix to the Chavidi of the village, a list of all lands relinquished in the month of April for information of persons who may apply for the grant of the relinquished lands. The list shall be kept affixed to the Chavidi till the 15 of May when a copy thereof shall be sent to the Tahsildar with a certificate of five respectable persons to the effect that the list was kept affixed to the Chavidi.

25.

Alluvion and Diluvion.

- In case of alluvion and diluvion, if the limit of two guntas in the case of wet land and one acre in the case of dry land prescribed in Sections 55 and 56 of the Act is exceeded and the change is of a durable nature, the increase or decrease shall be surveyed and assessed and the Sethwar corrected accordingly. But if the change is of a temporary nature, one year increase or decrease may be made in the Jamabandi.

26.

Levy of Assessment.

- If in settlement any area has been deducted from the area of any survey number for pat kharab (for example, rocks, stones, etc.,) and the occupant makes such area cultivable with his capital and labour, no assessment shall be levied on its during the term of settlement but if wet cultivation is done from Government water the difference between wet and dry assessment shall be levied as water rate till the next revision where full wet rate shall be levied. Nothing in this rule shall entitle any occupant to obstruct or cultivate the area deducted for tracks, or any other land such as tope, kunta, well, burial ground, saltpan, etc., reserved for a public purpose.

26A.

Such portions of any survey number for which Pot kharab has been given on account of Sendhi and Toddy trees standing thereon shall be charged the assessment at the rate fixed for the survey number.

27.

Tank Bed land not to be granted on patta.

- No unoccupied land situated in the bed of a Government source irrigation shall be granted on patta.

28.

Auction of right of cultivation for a specified crop.

- If any land mentioned in Rule 27 emerges from the water in any year and is fit for cultivation it shall not be leased for

cultivation.

29.

Grant of remission for bed lands.

- If after the bed land is cultivated water comes into the source due to unseasonal rains and the land or any portion of it is submerged and cultivation is not possible, (the lease amount) of the merged area shall be remitted. If, after the land is cultivated, the crop is submerged and destroyed, remission shall be given in accordance with the provisions of Rule 45.

30.

Lease of bed lands of rivers and nalas.

(1)

The bed lands of rivers and nalas which come out due to recession of water and area fit for cultivation may be leased on Eksala basis for cultivation, preference being given to persons belonging to Scheduled Castes, Scheduled Tribes, Backward Classes or Harijans and subject to the condition that cultivation is restricted to creepers such as cucumber, melons, mustard and the like, and that all the crops on the land shall be completely removed by the 31st May, so as not to obstruct the free flow or cause silting or general raising of the river bed.

(2)

The provision of Rule 29 shall apply also to bed of rivers and nalas coming under this rule.

31.

Right of Inamdars to Government water.

- If an Inamdar who, by virtue of Sanad or usage, is entitled to free irrigation of a particular crop from the Government source, takes water for a second crop or for sugarcane, he shall be charged full assessment in respect of the additional crop.

Provided that the seth sindies, neeradhies, balutedars shall be charged only 3 4th of the full assessment in respect of the additional crop.

32.

Irrigation of Qual land from Government source.

- If a Qualdar irrigates his qual lands from a Government source within the period of qual three fourths of the full assessment of the land shall be recovered from him besides the qual amount. After the expiry of the period of qual, the full wet assessment shall be levied after deducting dry assessment due to Government, in Inam land.

33.

Orders relating to remissions applicable to Government share in Inam land.

- The provisions of these rules relating to grant of remission shall also apply to the share of the Government.

34.

[***] (Deleted)Ommited

35.

Ryots free to sink wells.

- If a ryot sinks new wells in dry land in his occupancy situated outside the ayacut of Government patasthal sources, or repairs dilapidated or dried up wells with his own capital and does wet or baghat cultivation therefrom or plants trees, etc., he shall be entitled to the full benefit of such improvements and no additional assessment except the dry assessment fixed by settlement shall be levied on such lands. If such lands come within the ayacut of a Government source in future due to the construction or extension of or repairs to a source of irrigation, the ryots of such land shall not be compelled to irrigate their land from such source. They shall be free to take water from such source or not. If Government water is taken patasthal wet assessment shall be levied as before. It shall not be necessary to obtain any permission for sinking wells or repairing existing wells. The Village Officers shall maintain a record of all such wells giving details of land irrigated thereunder and send an annual statement to the Tahsil Office where entries shall be made in the concerned taluq register.

36.

Pucca and kachcha bhurkies and dry lands.

- Dry lands under bhurkies constructed on the banks of natural rivers and nalas shall be charged 1 1/8 the maximum dry rate of the village in the case of pucca bhurkies and 1 1/4 the maximum dry rate in the case of kachcha bhurkies until the next revision settlement.

37.

Wells constructed by ryots within the ayacut.

- (2) If on account of repairs to or extension of a Government source such land can be irrigated from such source for both the crops, the ryot shall be bound to take Government water for both the crops. (3) This rule shall apply also to quali wells constructed by ryots in accordance with rights granted under Government Resolution No.38 of 1303 F.

38.

New bhurkies in Patasthal wet lands.

- New Bhurkies situated in Patasthal wet land on which no assessment has been fixed by settlement and which are constructed by ryots on the banks of natural and nalas shall be governed by the provisions of the foregoing rules :

Provided that in the case of pucca bhurkies $1\frac{1}{8}$ the maximum dry rate of the village and in the case of kachcha bhurkies $1\frac{1}{4}$ the maximum dry rate shall be levied.

Provided further that :- (i) When the lifting of water is done by means of mechanical pump only the maximum dry assessment of the village shall be levied under categories of Bhurkies mentioned above (ii) if such lifting involves the stoppage of perennial flow of water in the natural rivers and streams, prior permission of the Government is necessary.

39.

(Omitted by G.O.Ms.No.7510 Revenue, dated -12-1959) Omitted

40.

Kists of Land Revenue.

- The following dates are fixed for the payment of land revenue to Government.

Karif and Abi Crops.....From 1st January to 31st January.

Rabi Crop.....From 1st to 21st April

Tabi Crop.....From 1st June to 15th June

41.

Record of rainfall.

- The record of rainfall year shall be maintained from 16th May and rainfall entries should be made in rainfall statements.

Part 2 ? Part A - Dry Lands No remission for dry land and no additional assessment for a second crop in such land.

B - Wet Lands under Patasthal sources

42A.

- "Where a wet crop is raised on dry land the water cess would be the difference between wet and dry assessment and that on irrigated dry crop raised on dry land would be one third of the difference between wet and dry assessment subject to maximum Rs.30 per acre in the case of wet crop and Rs.20 per acre in the case of dry crop. The Water cess so levied should be in addition to the existing dry assessment.

43.

Wet cultivation compulsory in all lands under patasthal sources.

(1)

In the cases of all patasthal wet lands whether classed by statement as single crop abi, single crop tabi or double crop, the abi crop shall be deemed to be first crop and tabi the second crop. Cultivation of all such lands in abi shall be compulsory if water is available at the source. Cultivation in tabi shall also be compulsory if water is available. In the case of all wet lands whether single crop or double crop, full assessment shall be levied for the abi crop and the same assessment shall be charged for the Tabi crop and if third wet crop is also raised on the same land, the charge levied shall be the same as for the crop.

44.

Remission of assessment of patasthal wet lands when they are not cultivated for any reasonable grounds.

- If a whole survey or pote number of Patasthal wet land is left fallow for any of the grounds mentioned in the foregoing rule, remission of assessment shall be granted, on an application by the parties or on a report of the local Patwari and Girdawar. For the purposes of Jamabandi such remission shall be called "Kame eksala".

45.

Remission of assessment of patasthal wet lands when their crop is destroyed.

- (2) Every ryot who wishes to claim remission under this rule shall submit an application in writing on unstamped paper to the Tahsildar or Naib Tahsildar not later than 22nd of November in the case of abi crop and not later than the 15th of April in the case of sugarcane crop. In the case of sugarcane crop, if the crop does not germinate, the application shall be submitted before the end of June and if it is destroyed after germination, the application shall be submitted not later than

the 15th of November but in special circumstances an application presented between the 15th November and 30th of December may be accepted. The Patwari shall, if requested to do so by the ryot, write application free of charge.

(3)

As soon as an application is received, the Tahsildar or Naib Tahsildar shall transmit it to the Girdawar, who shall, without any delay inspect the crop and make a panchanama of the crop in Form D and submit it to the Tahsildar or Naib Tahsildar as the case may be. The Panchanama shall be made in the presence of well informed panchas after making a proper estimate of the produce.

(4)

A Revenue Officer not lower in rank than a Naib Tahsildar shall personally inspect every land in respect of which an application for remission is made under this rule within 15 days from the date prescribed in sub rule (2) for submitting such application and shall record his opinion on the panchanama after making an estimate of the produce. Tahsildar or Naib Tahsildar shall be held responsible if this important work is not completed within the prescribed time limit. Reports showing the progress of this work be sent by the certifying officer to the Deputy Collector and Collector every fortnight. If the Deputy Collector is himself the certifying officer, he shall send such report to the Collector. If the number of applications is large, the work may be distributed among the Naib Tahsildars, Tahsildar and Deputy Collector. The ryots shall be bound to preserve the crop till the inspection of the certifying officer and shall not be entitled to any remission if they fail to do so. The Collector shall exercise street supervision over the subordinate officers in order to ensure completion of this work within the prescribed time limit;

(5)

After the Panchanamas have been certified by the Tahsildar or Naib Tahsildar, they shall be submitted to the Deputy Collector for sanction. When such sanction is received, it shall be communicated to the Village Officers and final accounts of such lands shall be settled in the Jamabandi.

(6)

The Collector shall be competent to sanction of remission for destruction of crop, after the Jamabandi goshwars have been despatched to the Revenue Department but intimation of such sanction shall be given to the Revenue Department within a week so that a record of the financial result of such sanctions may be maintained.

46.

Sugarcane cultivation.

(1)

The assessment for sugarcane shall be [] twice the abi assessment. The minimum area for sugarcane cultivation shall be ten guntas and if it is cultivated in less than ten guntas, assessment shall be levied on full ten guntas.

(2)

If sugarcane crop is standing in a field it should be given priority for supply of water from the patasthal source.

(3)

For the second and third crop of sugarcane commonly known as modam and makarmudam , the same assessment shall be charged as for first tabi crop.

(4)

After the sugarcane crop has been harvested, if tabi or baghat cultivation is done, full tabi assessment shall be levied for such cultivation but the ryot shall not be bound to do such cultivation.

(5)

In times of drought, if the sugarcane crop is irrigated from a well or by lifting patasthals water by a Gooda for a period of more than one month due to shortage of water in the patasthal source, remission may be granted at the rate of 1 12 of the fixed assessment for every month. But no remission shall be granted if the period of such irrigation is less than a month.

47.

Baghat cultivation in patasthal wet land.

- If, in spite of sufficient water being available, baghat cultivation is done in patasthal wet land, the full wet assessment shall be levied. If patashal water is taken for such cultivation throughout the year, full double crop wet assessment shall be charged.

48.

Wet cultivation in patashal baghat land.

- If the baghat assessment of land classed by settlement as patashal baghat is equal to the abi assessment shall be charged as in the case of patashtal wet land.

49.

Panmalla cultivation.

- If panmalla is irrigated from a Government patashal source, full double crop wet assessment shall be levied. The minimum area for panmalla cultivation shall be ten guntas and if it is cultivated in less than ten guntas, assessment shall be charged for the full ten guntas.

50.

Distribution of water for cultivation in cases of shortage of water supply.

- If in tabi season a patashtal source does not have so much water as to be sufficient for the entire ayacut under it, the area to be wet cultivated under the source during such season shall be determined after making an estimate of the quantity of water. The Girdawar shall, with the aid of the Village Officers make an estimate of the water after making a panchanama in the presence of respectable panchas of the village and select the lands to be irrigated. In selecting the lands the survey numbers nearest to the source and situated in a compact block should be selected. Standing crop of sugarcane, panmalla or plantains and wet Inam lands of seth sind and neeradies which have been granted to them in lieu of service should be given preference. The Girdawar shall submit his report together with panchanama to the Tahsildar. After the Tahsildar has accorded sanction, arrangement for cultivation shall be made accordingly. The Tahsildar shall be responsible to see that these arrangements are completed sufficiently before the cultivation season.

51.

Conversion of patashtal baghat land into patashal wet.

- In patashtal baghat land if a single or double wet crop is raised continuously for the three years, it may be converted into single or double crop wet land, as the case may be by effecting decrease and increase in Jamabandi.

52.

Conversion of single crop wet land into double crop wet.

- If single crop patashtal abi land is wet cultivated both in abi and tabi continuously for a period of three years due to sufficient water, being available in the concerned source, it may be converted into double crop land by effecting crop increase (fasal izaffa) in Jamabandi. But if water is taken for the second crop in any year incidentally, wet assessment should be levied under the head "Sivai Jamabandi"

53.

Baghat or wet cultivation in dry land or double crop wet cultivation in single crop wet land.

- If due to repairs to or extension or construction of a source of irrigation at Government expense during the term of settlement, baghat or wet cultivation can be done in dry land, or wet cultivation in a baghat land, or double crop wet cultivation in a single crop wet land. It shall be incumbent on the ryots [subject to Rule 35] to do such cultivation if there are no reasons preventing such cultivation and baghat or wet assessment, as the case may be, shall be levied on such land.

Explanation. - Whereafter the first wet crop on a single crop wet land has been harvested, an irrigated dry crop is raised in tabi although sufficient irrigation supplies for raising a second wet crop are available in the source, the assessment chargeable for such irrigated dry crop shall be half the tabi assessment.

54.

Remission of second crop assessment of double crop lands under big projects.

- In the case of lands under sources of irrigation having a large and perennial supply of water which can be cultivated for both the crops and have been classed as double crop lands, if during any year any of such lands are not fit for cultivation in the second crop, remission may be granted in Jamabandi under the head kami eksala for the second crop, if there are satisfactory grounds for the same.

55.

Conversion of patashtal wet land, dry land.

- Land classed as patashtal wet land, which has not been wet cultivated for a period of ten years or more due to reasons beyond the control of the ryot, shall be excluded from wet and included in dry land with the sanction of Collector and ain kami (actual decrease) shall be effected in Jamabandi.

56.

Reduction of one crop in double crop land.

- If the double crop patasthal wet land is found to be unfit for double crop cultivation, it may be converted into single crop land with the sanction of Collector and ain kami (actual decrease) effected in Jamabandi

57.

[Omitted]

58.

Second baghat or dry crop in patasthal baghat land.

- In patasthal baghat land, if after the raising of one baghat or dry crop is cultivated no additional demand shall be made in respect thereof.

59.

Dry cultivation in addition to wet crop.

- In patasthal wet land, if a dry crop is raised without the help of Government water, in addition to the prescribed wet crops no additional assessment other than the fixed wet assessment shall be levied. Where an irrigated dry crop is grown on wet lands as a second or third crop, the rate leviable for raising such crop would be one third of the difference between wet and dry assessment subject to maximum of Rs.20 per acre.

60.

Dry cultivation in patasthal wet land.

- In single or double crop wet land exclusively under a patasthal source, if dry cultivation is done due to scarcity of water, only one dry assessment shall be levied irrespective of whether one more dry crops are raised therein and the remaining wet assessment shall be remitted under the kami eksala . If water is taken from Government source for such dry crop once or twice double the dry assessment shall be levied for one such crop.

61.

Remission if the irrigation source is breached.

(1)

If a patasthal source of irrigation is breached and the entire field remains fallow due to water not being available, the assessment for the year in which the source is breached shall be remitted under the head kami eksala . But if dry cultivation is done in such land in that year, dry assessment shall be levied and the remaining wet assessment shall be remitted. As from the second year until the water supply is restored, dry cultivation shall be compulsory in such land and dry assessment shall be levied irrespective of whether dry cultivation is actually done or not.

(2)

If a source is breached and wet cultivation is done by a Bhudki by stopping the water which is going waste wet assessment should not be charged.

62.

Budkies Bhor Koles which are constructed on the banks of channels of patasthal sources of irrigation for the purpose of carrying water to lands situated at a higher level and which are dependent on the water of such sources shall be deemed to be wells and the assessment on such land shall be levied as per rule 36.

63.

Remission for double crop wet land if one crop is destroyed and the other is obtained.

- In double crop patasthal wet land, if any one of the two crops gets destroyed and other is harvested, the assessment for abi shall be levied and the assessment for tabi shall be remitted under the head moafi eksala .

64.

Remission for single crop abi land if abi gets destroyed and tabi is harvested.

- In single crop patasthal wet land if tabi is cultivated but gets destroyed and the tabi crop is harvested, the assessment for abi shall be remitted under the head moafi eksala and the assessment for abi shall be levied.

65.

Mode of assessment when patasthal wet land is irrigated from wells.

- Where owing to non availability of water from the appropriate patasthal source, wet cultivation is done with the help of a well whether new, old, auxiliary, quali or inami and whether situated within the ayacut of outside, dry assessment shall be levied and the remaining wet assessment shall be remitted under kami eksala,:

Provided that if such a well is a Government well, having no separate land assigned thereto, half the patasthal assessment shall be levied and the remaining half shall be remitted under kami eksala . Provided further that if such well is situate in the ayacut, the highest dry rate of the village shall be levied.

66.

Provided that all the lands under well situated in the ayacut shall be treated as under patasthal source.

- For purposes of assessment of lands whether classed in the settlement records as motasthal or patasthal shall be treated as if there were no classification on account of motasthal source:

67.

Patashal wet land irrigated partly from the concerned source and partly from the unconcerned source.

(1)

In the event of partial failure of water from the patasthal source, no remission shall be granted if the source has irrigated a crop for not less than half the period before the source dried up and the crops are saved with the help of any auxiliary or quali or inami well. But half the assessment shall be remitted if the patasthal source has irrigated the crop for less than half the period.

(2)

If a patashal source is breached and the ryots save the crops with their labour and expense, remission up to half the assessment may be granted taking into consideration the expenditure incurred on such saving irrespective of whether or not the water from Government source was taken for more than half the period.

67A.

Where on a single crop wet land registered in the revenue accounts of the Government, under a Government source of irrigation and irrigated in tabi and a second crop is raised with the help of water drawn from private well throughout the season owing to non availability of water from the Government source, dry assessment or half the tabi assessment whichever is less shall be levied."

68.

Irrigation of land situated outside the ayacut from Government patashal source.

- If any land situated outside the ayacut of patasthal source is irrigated from a Government patasthal source and as a result of such irrigation, the wet land or a portion thereof registered under such source get affected. patasthal assessment shall be levied on the irrigated land in addition to the dry assessment.

69.

Special circumstances under which remission can be granted to the crops under wells.

- If the crop under a well is destroyed due to reasons beyond the control of the ryot, such as hailstorm, frost, floods, locusts, etc., remission shall be granted in accordance with the provisions of Rule 42.

70.

No agricultural land can be diverted to any other purpose, without the permission of the Collector.

- Where a land has specifically been assigned for agricultural purpose and assessed as such, it shall not be put to any use to which, in the opinion of the Collector, it is apt to alter or undo the agricultural character the land.

71.

Mode of assessment in the event of diversion of agricultural lands to non agricultural purposes.

- [xxx]

72.

Special circumstances under which lands shall be exempted from the levy of special assessment or ordinary land revenue.

(1)

Notwithstanding anything contained in Rule 71 agricultural lands used for public purposes like hospitals, schools and or phanges, etc., shall be exempt not only from the levy of special assessment but also from the ordinary land revenue.

(2)

In places which are subject to local taxes lands acquired or used for roads, burial grounds, burning ghats, playing grounds and manorial pits and other like purposes, which do not fetch any income to the Local Government, shall be excised from the agricultural area. Where, however, such lands have been diverted to purposes like construction of market, extension of population and slaughter houses, etc., which fetch income, patta of such lands shall be registered in the name of the Local Body and special assessment levied.

73.

The Lands irrigated under Parre Kalwas shall be charged dry assessment plus one third of the difference between the maximum wet and dry rate of assessment of the village, subject to the condition that if the assessment so calculated

exceeds Rs.5 per acre, it shall be charged at the rate of Rs.5 only per acre.

Explanation. - Parrekalwa is a channel excavated by ryots with their own labour and at their own cost, on the bed of a river or stream, whereby they obtain supplies of water, percolating from below the surface of sand in such rivers and streams, in order to irrigate their lands by the flow of such waters. If, however such a channel should be run with the aid of waters flowing on the surface of the sand, it will not be deemed to be a Parrekalwa.

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